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# GSS Claims Administering (Pty) Ltd

Reg nr 2014/144335/07

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MONUMENT PARK  
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<<DATE\_TODAY>>

Our ref:  
<<CREATOR>>/<<MEMBER\_INIT\_FULL>>/<<MATTER\_TYPE\_SHORT>><<MATTER\_FILE\_CODE>>

<<ATT\_NAME>>  
<<LOCATION>>

Your ref: **New instruction**

Dear sir / madam,

**RENDERING OF LEGAL SERVICES TO SOLDIER'S LEGAL GUARD CERTIFICATE  
HOLDER/ CLIENT: <<RANK SHORT>> <<INIT SURNAME>> – BAIL APPLICATION  
(<<MATTER SPECIFIC SHORT>>):**

1. Guardian Soldier Services (Pty) Ltd is responsible for administrating the Soldier's Legal Guard Membership Benefit ("SLG") for the members of the South African National Defence Union (SANDU), a duly registered military labour union. GSS Claims Administering (Pty) Ltd, a subsidiary of Guardian Soldier Services (Pty) Ltd, is responsible to arrange for legal representation/assistance for members of SANDU in deserving cases. In doing so we are obliged to liaise with at least three legal firms to obtain the **most appropriate and cost-effective** representation under the particular circumstances.
2. As a result of the above, we are not always at liberty to pay the normal fees charged by attorneys and counsel. We are obliged to serve the best interests of not only the Membership Benefit certificate holder/client, but also SANDU and Guardian Soldier Services (Pty) Ltd.
3. This letter serves to enquire if an attorney of your firm will be willing and available, taking the above comments into consideration and subject to the fee arrangement set out below, to represent our above-mentioned certificate holder/client in in respect of the above bail application on <<DATE>> at the <<LOCATION>> <<COURT TYPE>>, and on such further dates as may be arranged between you and the relevant prosecutor.
5. Should you accept this invitation you must be prepared to proceed with the matter as scheduled.
7. In the light of the above and after considering the nature of the case and the reasonable expected duration of the trial in this matter, we are offering the following fees: **an all-inclusive fee for the completion of the trial, including fees for postponements, preparation and trial, all other necessary disbursements, and VAT, as follows:**

|                                       |                 |
|---------------------------------------|-----------------|
| <b>Opposed application:</b>           | <b>R1546-75</b> |
| <b>Unopposed application:</b>         | <b>R1244-30</b> |
| <b>Postponements (maximum 2)</b>      | <b>R325-45</b>  |
| <b>Travelling fees (max R1500.00)</b> | <b>R3-50/km</b> |

8. The above offer is based on the premises that your firm is VAT registered and thus liable for payment of VAT. Should you not be VAT registered, the **following fees** will apply:

|                                       |                  |
|---------------------------------------|------------------|
| <b>Opposed application:</b>           | <b>R1345- 00</b> |
| <b>Unopposed application:</b>         | <b>R1082-00</b>  |
| <b>Postponements (maximum 2)</b>      | <b>R283-00</b>   |
| <b>Travelling fees (max R1500.00)</b> | <b>R3-50/km</b>  |

9. Kindly advise in writing as soon as possible whether you accept this instruction. Should the matter be withdrawn/struck off the role for a reason that does not indicate a finalization of the matter, e.g. the absence of the applicant/respondent, etc. then it will be expected of you to give a written undertaking that you will be willing, should the matter be re-instituted, to proceed with the case to finalization on the basis of the original agreed fees, that is the agreed plea/trial fee less the withdrawal fee to be paid.
10. Should your firm be appointed and is VAT-registered, payment of your account will be dependent on the submission of a proper **tax invoice**, reflecting your firm's VAT registration number **and** the part of the all-inclusive fee allocated to VAT. Should you choose not to submit a tax invoice, for whatever reason, you will be paid according to the lesser scale quoted above as if you are not VAT registered.
11. Please note that, irrespective of your acceptance of this invitation, you will only be mandated to act on behalf of our certificate holder once you have been appointed in writing by the SLG Administrator.

Yours faithfully

(Unsigned – electronically sent)

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GSS Claims Administering (Pty) Ltd  
Per: P Janse van Rensburg  
Legal Advisor